

# STATE OF NEW YORK

8072--B

Cal. No. 229

2025-2026 Regular Sessions

## IN SENATE

May 15, 2025

Introduced by Sens. CLEARE, ROLISON -- read twice and ordered printed, and when printed to be committed to the Committee on Aging -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Aging in accordance with Senate Rule 6, sec. 8 -- reported favorably from said committee, ordered to first and second report, ordered to a third reading, amended and ordered reprinted, retaining its place in the order of third reading

AN ACT to amend the elder law, in relation to establishing an elder financial exploitation public awareness campaign

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. The elder law is amended by adding a new section 227 to  
2 read as follows:

3 § 227. Elder financial exploitation public awareness campaign. The  
4 director, in consultation with the superintendent of the department of  
5 financial services, is hereby authorized and directed to develop and  
6 conduct a public awareness campaign to educate older adults and persons  
7 providing care to or who have a fiduciary responsibility to an older  
8 adult on the prevention and detection of financial exploitation. The  
9 campaign may utilize public forums, social media, and mass media,  
10 including but not limited to internet, radio, and print advertising. The  
11 director shall, at a minimum, include informational materials on the  
12 office's website and distribute such materials to each area agency on  
13 aging in the state. Such materials shall include, but not be limited to,  
14 information on the following:

15 1. the estimated number of older adults who are victims of financial  
16 exploitation in New York state and the average amount of money lost;

17 2. factors that may increase the risk of financial exploitation for  
18 older adults;

EXPLANATION--Matter in italics (underscored) is new; matter in brackets  
[-] is old law to be omitted.

LBD13102-05-6

1 3. common types of financial scams and fraud and indicators of such  
2 types of financial exploitation;

3 4. common indicators that an older adult may be a victim of financial  
4 exploitation;

5 5. methods for older adults to report potential or actual instances of  
6 financial exploitation;

7 6. strategies for older adults to protect against financial exploita-  
8 tion; and

9 7. resources for victims of financial exploitation, including the  
10 services provided through the elder abuse enhanced multidisciplinary  
11 team program, as established by section two hundred twenty-five of this  
12 title.

13 § 2. This act shall take effect immediately.